

The Court finds Azari's position more persuasive. It is apparently undisputed by the parties that Pine Hollow, a separate legal entity, paid for the appraisal fees. Garaventa could have objected and sought to have the shareholders themselves divide payment of the appraisal fees. Garaventa, as the "moving parties" under Corporations Code section 2000 did not expend those fees, and the Court does not find the language of the statute allows the Court to award 50% of the appraisal fee as an expense incurred by Garaventa as a result.

Garaventa has pending claims against Azari and nominally Pine Hollow for alleged mismanagement and financial improprieties in the conduct of Pine Hollow's affairs. Garaventa may have remedies to address the appraisal fees in the context of his other claims in the case, but under the circumstances, an expense award under Corporations Code section 2000(c) cannot include that sum.

Supplemental Filings and Meet and Confer

The Court requests that Garaventa file and serve his supplemental filing, including a supplemental Bowles Declaration, addressing the information identified in this tentative ruling by **February 2, 2026**. Azari may file a supplemental opposition to Garaventa's supplemental filing **by February 9, 2026**.

With the guidance provided by this tentative ruling, the Court also requests that the parties meet and confer to attempt to resolve their disputes over the amount of expenses that should be awarded to Garaventa under Corporations Code section 2000(c) prior to the continued hearing on the motion.

Additional Notes on the Bowles Declaration

The Court disregards arguments in the Bowles Declaration regarding the merits of the disputes between Plaintiff and Azari for several reasons, including that argument is not properly included in a declaration as it is not evidence, that the arguments lack foundation, are hearsay, or are outside counsel's personal knowledge. (See, e.g., Bowles Decl. ¶¶ 8, 9, 12, 22, 30.) Bowles' summary of events in the case provide a case history and facts supporting the expense request, and his participation in the case provides foundation for his personal knowledge of those events.

14. 9:00 AM CASE NUMBER: N25-2444
CASE NAME: PETITION OF: MAUREEN MCCOOEY
HEARING IN RE: PETITION FOR RELEASE OF MECHANICS LIEN
FILED BY: MCCOOEY, MAUREEN

TENTATIVE RULING:

Continued to February 26, 2026, 9:00 a.m., for proper service of the petition. Civil Code section 8486(b) requires that the Petition be "served in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requests[.]" although the service declaration of Brendan Totah states that the petition was served "return receipt requested," the attached receipt from the U.S. Postal Service shows only that the documents were sent by priority mail. **Petitioner also will need to serve notice of the new hearing date.**